

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

Record class: appellant merits brief presenting both jurisdictional and assumed-facts immunity questions.

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-CA4-26-CV-4104 · Rusk opening brief

Opening Brief of Appellant Officer Nolan Rusk

Filed March 16, 2026.

Officer Nolan Rusk seeks review of an interlocutory order denying qualified immunity. The appeal concerns one drive-stun cycle used while Rusk and Officer Priya Vega brought Mara Ellison under control during a welfare check. The district court held that a jury must decide whether Ellison struck Rusk and moved toward his equipment or instead only recoiled and pulled from his wrist grasp. JA242–JA253.

Two questions are presented. First, may this Court consider the objective recordings when identifying the factual premises for the legal immunity analysis, or is that submission an unreviewable challenge to evidentiary sufficiency? Second, on the plaintiff-favorable premises identified below, did precedent existing on February 3, 2025 make a single contact-mode cycle and takedown clearly unlawful beyond reasonable debate?

Rusk's principal request is reversal on the clearly-established-law prong. He separately preserves the media argument because the district court's assumed version, in his view, understates the rapid physical resistance apparent in the synchronized record. He recognizes that the Court must police the boundary between those contentions.

Jurisdictional statement

The district court had jurisdiction under 28 U.S.C. § 1331 over Ellison's claim under 42 U.S.C. § 1983. On January 9, 2026, it denied Rusk's motion for summary judgment and expressly rejected qualified immunity on facts assumed in Ellison's favor. JA242–JA253. Rusk filed a notice of appeal on January 16. JA261–JA263. The district clerk certified the designated record after receiving the transcript statement and record designation. JA264–JA275.

This Court has jurisdiction under 28 U.S.C. § 1291 and the collateral-order doctrine to decide whether assumed facts establish a violation of clearly established law. *Mitchell v. Forsyth*, 472 U.S. 511, 526–30 (1985). It lacks immediate jurisdiction over a request merely to decide whether the evidence can support the plaintiff's account. *Johnson v. Jones*, 515 U.S. 304, 313–20 (1995).

The Fourth Circuit recently restated that division in *Barricks v. Wright*, No. 25-1250, slip op. at 6–8, 12 (4th Cir. Mar. 3, 2026). Rusk therefore presents his media contention separately. If the Court concludes that contention targets factual sufficiency, it may dismiss that portion and still reach the legal qualified-immunity issue on the district court's specified assumptions.

Issues and requested disposition

The first issue concerns appellate power, not merely the standard of review. Rusk contends that *Scott v. Harris*, 550 U.S. 372 (2007), permits consideration of authenticated recordings when a litigant's factual version cannot coexist with what the media indisputably show. Ellison answers that the critical hands are hidden and the audio has no reliable physical attribution, making Rusk's request indistinguishable from reweighing evidence.

The second issue assumes Ellison was unarmed, emotionally distressed, and pulling from wrist control; that she neither struck nor grabbed Rusk, neither fled nor reached toward his belt, and posed no immediate safety danger; and that Rusk applied one five-second drive-stun cycle while forcing her to the breezeway floor. JA249. Rusk submits that the force was a brief control measure in a fluid encounter. At minimum, he argues that the mode, duration, close physical struggle, and single activation materially differ from prior cases.

The Court should reverse and direct entry of judgment on qualified immunity. If it rejects the clearly-established-law argument, it should decide no disputed historical fact. Any dismissal for lack of jurisdiction should be confined to the request to reassess the recordings, leaving the legal immunity question available for decision.

Course of proceedings

Ellison originally sued Rusk, the City of Alder Creek, and Chief Samuel Orton. The May 12, 2025 amended complaint removed the municipal and official-capacity defendants and retained one individual-capacity excessive-force count. JA1–JA31. Rusk answered and denied that his conduct was unreasonable. The lawfulness of taking Ellison into protective custody is not contested in this appeal.

Discovery produced the 911 and dispatch materials, police and medical reports, authenticated body-camera exports, timing and obstruction analyses, depositions, and expert submissions. JA32–JA186. The parties agreed to authenticity for identified media while reserving what those sources prove. Their joint chart records that neither camera continuously depicts the relevant hand positions during the central interval. JA238–JA241.

Rusk moved for summary judgment on November 21, 2025. JA187–JA212. Ellison opposed on December 12, and Rusk replied on December 23. JA213–JA237. Judge Elaine Mercer denied the motion on January 9. She first found evidence sufficient for a jury to accept either account. She then held, on Ellison's account, that the force violated a right clearly established before the encounter. JA242–JA253. This timely appeal followed.

The welfare call and initial contact

At 19:42:11 on February 3, Iris Ellison asked emergency dispatch to check on her sister, reporting a medication and mental-health crisis. She reported no weapon, violence, crime, or stated threat. JA32–JA38, JA131–JA140. Dispatcher Lena Cho sent Rusk and Vega to Larkspur Court Apartments at 19:47:36. Rusk activated his body camera before arriving at 19:52:14. JA69–JA82.

Rusk found Mara Ellison seated in the Building C exterior breezeway at approximately 19:52:48. Her hands were initially empty and visible. She appeared distressed and did not comply promptly with every direction. Rusk spoke with her and, at about 19:53:02, grasped and restrained her left wrist. He agrees the Fourth Amendment seizure began no later than that point. JA118–JA130.

The parties disagree about what the ensuing resistance meant. Rusk understood Ellison's movements as escalating and directed her to stop pulling. Ellison says she recoiled from pain caused by his grip and tried to pull her wrist back. JA107–JA130. Both accounts place the encounter near a railing and both officers within the confined breezeway. The legal question must account for the speed and proximity without converting disputed conduct into an undisputed threat.

The obstructed interval

Rusk's body-camera view becomes materially blocked at 19:53:08 by close bodies and clothing. Vega's recording captures a different angle, but the railing, Rusk, and the participants' positions prevent a reliable continuous view of Ellison's hands relative to Rusk's forearm or duty belt. The obstruction persists until approximately 19:53:22. JA77–JA101, JA170–JA178.

At about 19:53:11, the audio records Rusk saying “stop pulling” and Ellison responding that he is hurting her. Movement and contact sounds follow. Device data record a single five-second drive-stun cycle from roughly 19:53:16 through 19:53:21 while Rusk forced Ellison downward. When the view clears, Ellison is on the ground and Vega moves to control her hands. Handcuffing is complete by 19:53:37. JA69–JA106.

Rusk testified that Ellison twisted, struck his forearm, and moved a hand toward equipment on his belt. Ellison denied any strike or reach. Vega observed body movement but could not reliably see the hands. JA107–JA150. The district court found the audio incapable of assigning the sounds to a particular limb or object. Rusk challenges the legal significance of the full synchronized sequence while acknowledging that no frame displays the alleged contact directly.

Force, restraint, and medical evidence

Rusk applied the conducted-energy weapon in drive-stun mode, meaning the device made direct contact rather than deploying probes. He activated it once. There was no second cycle, no use of the device after handcuffing, and no later strike. Rusk and Vega then maintained control until medical personnel evaluated Ellison. JA39–JA56, JA118–JA150.

Paramedic Mateo Cole documented a left-wrist abrasion, two superficial contact burns, and shoulder pain. Hospital imaging showed no fracture; the discharge assessment included shoulder strain. JA51–JA63, JA151–JA159. Rusk reported forearm soreness but did not obtain hospital treatment. The parties properly agree that injury severity does not alone establish constitutional reasonableness.

The expert materials divide along the same factual boundary. Dr. Dana North concludes the force was disproportionate if Ellison merely pulled without creating danger. Retired Captain Rowan Pike opines that a single cycle was an acceptable interruption if an officer reasonably perceived a strike and equipment reach. Professor Adrian Crane explains why the recorded fields of view do not resolve which event occurred. JA160–JA186. The experts cannot supply missing historical facts, and Rusk does not ask the Court to decide credibility among them.

Standards of review and decision sequence

The Court reviews de novo the legal denial of qualified immunity. It asks first whether the facts taken in the nonmovant's favor establish a constitutional violation and second whether the right was clearly established at the time. The steps may be addressed in either order, but this appeal turns most directly on fair notice.

On interlocutory review, an appellate court ordinarily accepts the district court's supported factual assumptions. *Barricks* confirms that a defendant may contest the legal consequences of those assumptions without obtaining appellate factfinding. Slip op. at 6–12. *Johnson* bars a different inquiry: whether the plaintiff produced enough evidence to prove her account. 515 U.S. at 313–20.

Scott supplies a narrow media rule. A court need not adopt a version blatantly contradicted by an objective recording. 550 U.S. at 378–81. *Tolan v. Cotton*, 572 U.S. 650, 656–60 (2014), warns that courts may not draw movant-favorable inferences from ambiguous evidence. Rusk accepts that these principles require separate treatment of the media issue and the assumed-facts legal issue. A jurisdictional dismissal of the first would not preclude de novo review of the second.

The recordings should inform the factual baseline

The district court treated the obstruction as preventing any objective constraint on Ellison's account. Rusk submits that this framing isolates fourteen seconds from the larger synchronized event. Immediately before blockage, Ellison is moving away from wrist control; during blockage, Rusk gives a repeated command; the camera motion and contact sounds accelerate; and both officers are engaged when the image clears. JA69–JA101. In his view, the sequence excludes a static or fully passive encounter.

Rusk does not contend that a pixel depicts the alleged strike or belt reach. His narrower point is that objective motion, timing, and audio show continued physical resistance during the descent. He argues that this undisputed context should inform how specifically the Court defines the assumed circumstances, even if it cannot establish every movement described in his testimony.

Ellison will answer that the district court already assumed pulling, not passivity, and that Rusk's additional inference concerns only the degree and danger of resistance. If the Court agrees, *Johnson* requires dismissal of this part of the appeal. Rusk preserves the contention because *Scott* is not limited to recordings that reveal every body part, but he recognizes that the critical alleged acts remain outside both cameras' dependable fields of view.

Objective reasonableness under the assumed facts

Under *Graham v. Connor*, 490 U.S. 386, 396–97 (1989), force is evaluated from the perspective of a reasonable officer at the scene, considering the totality rather than hindsight. Offense severity, immediate threat, resistance, and flight are important but not exhaustive. The analysis also accounts for rapidly changing circumstances and the force actually used.

The plaintiff-favorable assumptions remove crime, weapon possession, flight, striking, grabbing, equipment access, and immediate danger. They do not remove lawful seizure, noncompliance, pulling, close physical contact, a hard railing, or the need to obtain control. Rusk submits that those remaining facts permit a calibrated response even when they do not justify force designed for an armed attack.

The challenged act was one contact-mode cycle lasting five seconds during, not after, the effort to bring Ellison down. It ended before handcuffing and was not repeated. JA69–JA82, JA242–JA253. Rusk argues that a reasonable officer could regard this brief pain-compliance measure as proportionate to active pulling in a confined location. The district court instead treated the absence of immediate danger as making electrical pain categorically disproportionate. That legal step, Rusk contends, understates the legitimate control interest recognized by *Graham*.

Control needs did not vanish because the call was protective

The welfare purpose substantially reduces the governmental interest compared with a serious crime. It also affects tactics because officers know distress may impair communication. But the protective setting does not require officers to release a subject who pulls from an initiated seizure or to wait until a hand reaches equipment. Rusk had to manage Ellison's movement while standing near a breezeway railing with another officer entering the contact.

The district court identified communication, grip adjustment, spacing, and repositioning as possible alternatives. JA249. The Fourth Amendment does not impose a least-restrictive-means requirement. Available alternatives may illuminate proportionality, but they cannot be assessed as if an officer had time to test each option during a seconds-long struggle.

Rusk does not seek a rule that distress equals danger or that any pulling authorizes a conducted-energy weapon. He submits that a single drive stun integrated into a takedown occupies a narrower category than repeated shocks used to punish or compel a stationary person after control is available. That contextual distinction matters both to reasonableness and, more decisively, to whether existing cases gave unmistakable notice. The question is the lawfulness of this force, not a general license for electrical control during mental-health calls.

One contact-mode cycle is a bounded use of force

Drive-stun mode intentionally causes pain and left two superficial burns here. Rusk does not call it trivial. The constitutional inquiry nevertheless distinguishes one five-second activation from multiple cycles, probe deployment, prolonged electrical exposure, and force delivered after a subject is secured. The device record and both transcripts fix the activation at 19:53:16–21, within the takedown sequence. JA69–JA101.

The resulting injuries—an abrasion, contact marks, and strain without fracture—are consistent with a meaningful but limited application. JA51–JA68. Injury is not a safe harbor, but it helps describe magnitude when combined with mode and duration. No evidence shows Rusk continued the cycle after Ellison was down or activated the device again when Vega obtained hand control.

On the assumed facts, the control need was lower than Rusk perceived. Yet qualified immunity allows room for reasonable legal error. An officer evaluating active pulling at arm's length could believe a single contact cycle was materially less intrusive than the repeated or extended uses condemned in earlier opinions. The district court's formulation collapses those gradations into a general proposition that electrical pain requires immediate danger. Existing precedent must be examined at a level specific enough to test that proposition.

Clearly established law requires particularized notice

Qualified immunity protects an officer unless existing law makes the unlawfulness of the precise conduct apparent to every reasonable official. General excessive-force principles do not by themselves answer whether a particular mode and duration were prohibited in a particular control setting. The relevant inquiry uses pre-incident authority; later decisions can explain doctrine but cannot retroactively supply notice.

The district court's formulation asks whether prior law prohibited combining a forced descent with one five-second contact activation when a welfare-check subject, though unarmed, distressed, and pulling against wrist control, neither attacked nor grabbed the officer, attempted escape, moved toward police equipment, or created immediate danger. JA250. Rusk accepts that formulation for this argument while disputing the assumed history.

No cited Supreme Court or Fourth Circuit case addressed that combination. *Graham* supplies the totality framework, not a device-specific answer. *Barricks*, decided after the encounter, confirms that preexisting decisions may clearly establish rules on assumed facts, but its March 2026 ruling could not itself inform Rusk in February 2025. The remaining question is whether *Armstrong*, *Smith*, *Meyers*, and *Yates* placed this single-cycle conduct unmistakably on the prohibited side despite differences in force, threat, resistance, and sequence.

Armstrong does not eliminate the material distinctions

Estate of Armstrong ex rel. Armstrong v. Village of Pinehurst, 810 F.3d 892 (4th Cir. 2016), involved a mentally ill subject wrapped around a signpost and officers who used a conducted-energy device repeatedly while attempting a protective seizure. The Court held the force excessive but granted immunity for the 2011 event, then gave prospective guidance linking serious electrical force to immediate danger rather than resistance alone. *Id.* at 901–09.

Rusk accepts that *Armstrong* warns against using a taser merely because a distressed person is resistant. The factual fit is not exact. Ellison was not stationary around a fixed object; she was pulling in close contact with an officer beside a railing. Rusk used one five-second drive-stun cycle as part of a descent, not repeated activations during a prolonged extraction. The assumed facts remove a strike and belt reach but retain an ongoing physical contest over wrist control.

The district court treated *Armstrong*'s proportionality language as enough to bridge every difference. JA250–JA251. Rusk submits that qualified immunity requires more. A reasonable officer could read *Armstrong* to forbid repeated serious electrical force against stationary resistance without immediate danger while leaving uncertainty about one contact cycle used to finish a moving takedown.

The additional cases do not close the notice gap

Smith v. Ray, 781 F.3d 95, 102–04 (4th Cir. 2015), concerned force following modest movement by a person who did not pose the danger claimed. It supports attention to threat and proportionality, but it did not decide whether one drive-stun cycle may accompany control of active pulling.

Meyers v. Baltimore County, 713 F.3d 723, 733–35 (4th Cir. 2013), addressed repeated taser uses and differentiated applications while a subject posed a threat from later shocks after that threat ended. Its sequence-specific analysis cuts against treating every activation alike. Rusk's single cycle occurred before hand control and ended as Ellison went down.

Yates v. Terry, 817 F.3d 877, 884–88 (4th Cir. 2016), found fair notice for taser use against a nonthreatening subject in a traffic-stop setting. The force history and absence of a comparable close physical struggle limit its specificity here. Taken together, these cases announce a powerful proportionality principle. They do not unmistakably resolve the narrower mode-duration- sequence presented on the district court's assumptions.

Qualified immunity is designed for that boundary. The Court may conclude Rusk chose more force than necessary without concluding every reasonable officer had settled notice that the single cycle was unlawful.

Barricks preserves the legal appeal but does not decide it

Barricks is relevant because it was issued before this brief and explains the appellate route. It instructs the Court to reject a defendant's attempt to replace plaintiff-favorable assumptions with a defense version, yet to decide whether the accepted facts establish a violation of clearly established law. Slip op. at 6–12. Rusk's brief follows that structure by segregating his media submission from his principal immunity argument.

On substantive force, *Barricks* considers offense severity, threat, resistance, flight, and a changing sequence. It also recognizes that preexisting circuit precedent can give fair warning against gratuitous injurious force to a nonthreatening person. Those propositions do not eliminate the need to compare the actual force and control context. Rusk's cycle was contemporaneous with pulling and a takedown, not a blow delivered after surrender.

Because *Barricks* postdates February 3, 2025, it cannot be the precedent that made Rusk's conduct clearly unlawful. Its procedural holding supports jurisdiction over the legal issue; its discussion may clarify how older cases are read. The Court must still determine whether those older cases addressed this situation with sufficient specificity. Rusk submits that the district court drew the notice rule too broadly.

The Court can resolve immunity without trying the facts

Rusk's asserted strike and belt reach remain material below. If a jury credits them, the immediate safety interest changes substantially. If a jury rejects them, the case proceeds on the lower-risk version. Nothing in a legal ruling for Rusk on clearly established law would declare that his historical account is true.

Conversely, affirmance on assumed facts would not establish Ellison's version for trial. It would hold only that, if the jury finds no strike, reach, or immediate danger, qualified immunity does not bar liability. The district court took care to describe that conditional relationship. JA252–JA253.

Rusk therefore asks the Court to keep three outcomes distinct. It may dismiss the media-based factual target for want of interlocutory jurisdiction. It may reverse the legal immunity ruling because the pre-2025 cases did not provide sufficiently particular notice. Or it may affirm that legal ruling while returning the unresolved history to the district court. The one unavailable course is appellate selection of which witness accurately described the hidden seconds. Rusk preserves his evidence for trial and seeks no credibility finding from this panel.

Conclusion and filing certifications

The Court should reverse the denial of qualified immunity and remand with instructions to enter summary judgment for Officer Rusk. At minimum, it should dismiss any portion of the appeal that it views as a challenge to evidentiary sufficiency while separately deciding the pure legal question on the district court's plaintiff-favorable assumptions. The Court should not determine whether a forearm strike or duty-belt reach actually occurred.

Counsel certifies that this brief was filed electronically on March 16, 2026; that registered counsel for Mara Ellison received electronic service; and that the brief uses the typeface, spacing, margin, and length conventions required by the applicable rules and briefing order. The joint appendix was filed the same day after counsel conferred on contents and preserved objections to interpretation.

Counsel further certifies that record citations refer to the district pagination reproduced in the appendix. No citation treats generated frames as evidence, and no argument attributes unseen hand movement to the obstructed recordings as an observed fact. References to the media contention identify the issue preserved for jurisdictional decision.

Respectfully submitted by fictional counsel for appellant Officer Nolan Rusk.